

Data Protection Education (DPE) GDPR Audit walk report December 2021

DPE lead consultant and author: Stuart Lee

School lead and DPE contact: Louise Robinson (headteacher)

Introduction and approach

The report is written from information obtained from remote consultations and the audit walk. The primary focus of the 29 November 2021 visit was to complete an afterschool walk and provide a follow up audit walk report that can be shared with governors. The report content is divided into 4 sections and where relevant, feedback and considerations are included:

1. Leadership and oversight
2. Policies and procedures
3. Training and awareness
4. Audit walk findings

1. Leadership and oversight

The school buys into the Data Protection Education (DPE) service and has access to the knowledge bank; including the school dashboard; best practice areas; compliance documents, which includes resources; e-learning training; breach and SAR log. DPE is the school's named DPO. The school's headteacher oversees GDPR compliance and liaises directly with DPE for the school's GDPR compliance program. The school has a governor assigned for data protection.

2. Policies and procedures

There is a dedicated GDPR section on the school website with the following DPE GDPR documentation listed:

- GDPR policy
- Privacy Notice for pupils and general public (i.e. visitors)
- Data breach procedure

Feedback and considerations:

The Workforce Privacy Notice, Subject Access Request Procedure and third party list to be added to the website.

3. Training and awareness

From reviewing the online training record, staff have completed various e-learning training modules:

- National Cyber Security Centre (NCSC) Stay Safe Online Training

- Data breach
- Subject access requests
- Password security
- Physical security
- Working at home
- Data classification
- Clear desk
- GDPR module 101 and GDPR refresh

Where staff have yet to complete a training module, Lousie is aware of the reporting function within the DPE website to monitor, review and follow up with staff as needed.

Feedback and considerations:

The school should continue to raise staff awareness, for example, findings from the walk can be communicated to staff regarding best practice, and e-learning training can be selected for staff to complete as relevant.

4. Audit walk

The making the rounds audit is a physical audit completed onsite. The intention is to select as many working areas and locations as possible to assess (observe) how data is processed, accessed, stored and displayed.

From this audit, discussion takes place to identify better practice and where there is good practice. This is then fed back to staff to raise awareness (including additional training) and improve practice in school. Details of the audit walk completed on 29 November 2021 is detailed below:

Entrance/reception:

Observations: The School now uses InVentry for electronic signing in. Entrances were secure and good visitor protocol was followed. The school displays staff photos in the foyer area.

Feedback and considerations: add statement to inVentry to inform visitors that the general privacy notice can be obtained from the GDPR section of the school website.

Obtain consent for staff photos on display in the foyer/reception area.

Front office:

Observations: Clear desk practice observed. PC locked and minimal data on display. 1 x unlocked cabinet and accident book observed.

Feedback and considerations: Reminder to staff to lock the filing cupboard at the end of the school day.

Reminder to lock the staff injury book away with other sensitive data.

Consider adding a mini key safe on the wall so keys are secure but easily accessible and support business continuity in the event of staff absence of key holders.

Photocopier(s):

Feedback and considerations: Review the need for secure codes on photocopiers. Not only beneficial from a GDPR perspective; this would lead to cost savings for print jobs that are sent to the photocopier that are no longer needed.

Headteacher's office:

Observations: Clear desk practice observed with minimal data on display. Lousie relies on auto lock out for the desktop/laptop.

Feedback and considerations: Consider adding a key code lock to the office door. This will add another level of security; as sensitive data including safeguarding files are also kept in the office.

Although the laptop is set to time out, it is best practice to use: windows and L to lock the desktop/laptop when not working in the office.

Deputy/Finance office

Observations: No clear desk practised. Information/data observed: UN and PW lists, breakfast club folder, confidential folder on desk, performance management documents, staff contact list and cupboards were unlocked.

Feedback and considerations: Consider adding a key code lock to the office door which will add another level of security.

Reminder to staff to store sensitive data securely by adding to available secure storage.

Staff to complete a de-clutter and destroy outdated information, and move sensitive data to secure storage.

Consider staff completing additional e-learning training i.e. Clear Desk and Password training.

Review data in the filing cabinet - can data be reshuffled to allow sensitive data to be moved to the filing cabinet?

Staffroom:

Medical lists observed on the notice board.

2 x pigeon holes contained sensitive data including medical documents.

Feedback and considerations: Medical lists are kept in the staffroom. Although covered - is there a better way of communicating/storing/accessing i.e. utilise online systems - school to review.

Review whether the staffroom would benefit from key code access.

Medical Room

Observations: Medical book information easily accessible.

Feedback and considerations: Discussed using carbon sheet medical books and developing a system for recording medical information on to the schools MIS and texting parent/carers - school to review.

Review whether the medical room would benefit from key code access.

Classrooms

Observations: In general classrooms had minimal data on display and good practice observed in many classrooms. 1 x classroom had medical information from 2014/15; laptop and password accessible and individual SEND record observed. Some classrooms used the back of cupboard doors to display data. 1 x classroom with iPad unlocked, assessment and tapestry log ins in class trays.

Feedback and considerations: Reminder to staff to check information in folders and securely destroy outdated information and/or check with office staff for secure destruction.

Remove data from the back of cupboard doors in classrooms and develop a folder, or electronic system.

Reminder to staff to lock iPads and store securely.

Reminder to staff for storing passwords and UNs securely.

PPA office

Observations: Unlocked SEND and EYFS filing cabinets and sensitive data accessed.

Feedback and considerations: Reminder to staff to lock filing cabinets.

Consider adding a key code lock to the office door, which will add another level of security.

Kitchen

Observations: Confidential files easily accessible.

Feedback and considerations: Reminder to staff to store securely.

Audit walk main considerations

- Continue to raise staff awareness regarding best practice (referring to the audit walk findings and quick reference sheet - attached) and implement additional e-learning training for staff members as necessary. In addition, follow up with staff yet to complete any e-learning training.
- Complete a data cleanse (declutter) in areas identified and build in whole school routines to complete periodically.
- Consider adding key code locks to the doors identified.
- Review the need for mini key cabinets in selected areas.
- Add secure codes to the photocopier(s).

- Review the process for medical/accident recording.

Note: Each school is unique, for example, a school where the rooms are used for lettings or has agency staff, has different risks to schools that are not. Kinsale Infants is not used for lettings and employs agency cleaning staff.